



CHAPTER xxxviii.

An Act to confirm certain Pilotage Orders made by the Board of Trade under the Pilotage Act 1913 relating to pilotage in the Pilotage Districts of Blyth and Buckie and in those under the jurisdiction of the Corporation of the Trinity House of Newcastle-upon-Tyne. [20th July 1922.] A.D. 1922.

WHEREAS the Board of Trade have made the Pilotage Orders set forth in the Schedule hereto under the provisions of the Pilotage Act 1913 but the same do not take effect unless and until confirmed by Parliament:

And whereas it is expedient that the said Pilotage Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Pilotage Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force.

Confirma-
tion of
Orders in
schedule.

2. This Act may be cited as the Pilotage Orders Confirmation (No. 3) Act 1922.

Short title.

A.D. 1922.

SCHEDULE OF ORDERS.

1. BLYTH.
2. BUCKIE.
3. NEWCASTLE-UPON-TYNE (TRINITY HOUSE) in respect of
the districts of :—
 - Craster.
 - Holy Island and North Sunderland.
 - Seaham.
 - Warkworth and Amble.
 - Whitby.

SCHEDULE.

A.D. 1922.

BLYTH PILOTAGE ORDER.

Blyth.

1. The limits of the Blyth Pilotage District (hereinafter referred to as "the Pilotage District") shall be the Harbour of Blyth and so much of the sea as lies within a distance of two miles from the seaward extremity of the East Pier.

Pilotage District.

2. Pilotage shall not be compulsory in the Pilotage District.

Pilotage not to be compulsory.

3.—(1) There shall be constituted for the Pilotage District a Pilotage Authority which shall be a body corporate with perpetual succession and a common seal by the name of the Blyth Pilotage Authority (hereinafter referred to as "the Authority") and shall consist of members appointed and elected as follows :—

Pilotage Authority.

(a) Four members appointed by the Master Pilots and Seamen of the Trinity House of Newcastle-upon-Tyne (hereinafter referred to as "the Trinity House") from among their own members ;

(b) Four members appointed by the Blyth Harbour Commissioners from among their own members ;

(c) Two members appointed by the North of England Steamship Owners' Association or if at any time that body shall in the opinion of the Board of Trade cease to be fairly representative of the shipowners using the Port of Blyth then by such body or bodies representing shipowners as shall be nominated for the purpose by the Board of Trade ;

(d) Two members from among the four persons (hereinafter referred to as "Pilots' representatives") elected in manner hereinafter provided by the pilots licensed for the Pilotage District (hereinafter referred to as "licensed pilots") from among persons who either are or have been licensed pilots.

(2) The members of the Authority shall be appointed and elected respectively at the times and in the manner in the schedule hereto provided.

4. The chairman of the Authority shall be elected by the Authority from among their members and shall remain in office until the next triennial appointment and election of members has taken place.

Chairman of the Authority.

5.—(1) The chairman if present shall preside at every meeting of the Authority. If the chairman is absent from any

Proceedings of the Authority.

[Ch. xxxviii.] *Pilotage Orders* [12 & 13 GEO. 5.]
Confirmation (No. 3) Act, 1922.

A.D. 1922. meeting such other member as the members then present choose shall preside.

Blyth.

(2) Every question at a meeting of the Authority shall be decided by a majority of the votes of the members of the Authority present and voting on that question and in the case of equality of votes the person presiding at the meeting shall have a second or casting vote.

(3) The quorum of the Authority shall be five.

(4) No member of the Authority shall take part in any proceedings of the Authority relating to any question affecting himself personally.

(5) Subject to the provisions of this Order the Authority may regulate their own procedure.

(6) No act or proceeding of the Authority shall be invalid on account of any vacancy in their body or on account of the appointment election or ascertainment of any member having been defective.

Period of office.

6. Members of the Authority shall hold office from the date of their appointment or election respectively until such time as their successors may be appointed or elected respectively but shall be eligible for re-appointment or re-election respectively provided that the appointment of any appointed member may be determined at any time by the body which appointed him.

Trinity House to be the Authority temporarily

7. Until all the members of the Authority have been appointed or elected under the provisions of this Order the Trinity House shall be deemed to be the Authority.

Vesting of property.

8. All property (real or personal) rights easements and choses in action which immediately before the commencement of this Order belonged to or were vested in or enjoyed by the Trinity House in connection with the Pilotage District or the sub-commissioners of pilotage appointed by the Trinity House at Blyth (hereinafter referred to as "the sub-commissioners") or by any person in trust for them respectively or on their behalf shall be and the same hereby are vested in the Authority to the same extent and for the same estate and interest as the same were immediately before the commencement of this Order vested in the Trinity House in connection with the Pilotage District or the sub-commissioners or any person in trust for them or on their behalf and may be held recovered and enjoyed accordingly.

Pending proceeding and existing contracts

9.—(1) If at the date of the commencement of this Order any proceeding or cause of action is pending or existing by or against the Trinity House in connection with the Pilotage District or the sub-commissioners the same shall not abate, discontinue or be in any way prejudicially affected by reason of anything in this Order but the proceeding or cause of action may be continued prosecuted and enforced by or against the Authority

[12 & 13 GEO. 5.] *Pilotage Orders* [Ch. xxxviii.]
Confirmation (No. 3) Act, 1922.

as it might have been by or against the Trinity House or the sub-commissioners as the case may be if this Order had not been made but not further or otherwise.

A.D. 1922.

Blyth.

(2) All contracts deeds bonds agreements and other instruments subsisting immediately before the commencement of this Order and affecting the Trinity House in connection with the Pilotage District or the sub-commissioners shall be of as full force and effect against or in favour of the Authority and may be enforced as fully and effectively as if instead of the Trinity House or the sub-commissioners as the case may be the Authority had been a party thereto.

(3) All pilots' licences and pilotage certificates granted in connection with the Pilotage District by the Trinity House or by the sub-commissioners prior to the commencement of this Order shall have the same force and validity as if they had been granted by the Authority under the provisions of the Pilotage Act 1913.

10. With a view to the economical working of the pilotage service the Blyth Harbour Commissioners may grant to the Authority the use of offices and other assistance.

Blyth Harbour
Commissioners
authorised to
assist Authority.

11. As from the commencement of this Order the sub-commissioners shall be dissolved.

Dissolution of
Blyth sub-
commissioners.

12. The Authority may from time to time if they think fit purchase hire or build and equip maintain and work or enter into agreements or arrangements with any person for the supply use maintenance and working of such boats or vessels as in the opinion of the Authority may be required for the efficient working of the pilotage service. If a majority of the pilots concerned object to the Authority exercising these powers or if a difference arises between the Authority and the pilots as to the conditions on which these powers should be exercised the matter shall be referred to the Board of Trade whose decision shall be final.

Power to
provide or
arrange for
supply of
pilot boats.

13. This Order shall come into force one month after the day when the Act confirming this Order is passed.

Date of
commence-
ment.

14. This Order may be cited as the Blyth Pilotage Order 1922.

Short title.

SCHEDULE.

With reference to the appointment and election of the Authority the following provisions shall have effect that is to say :—

1. The persons to be appointed by the appointing bodies shall be appointed as soon as may be after the passing of the

[Ch. xxxviii.] *Pilotage Orders* [12 & 13 GEO. 5.]
Confirmation (No. 3) Act, 1922.

A.D. 1922, Act confirming this Order and thereafter in the month of
November in the year 1923 and in each third year thereafter.
Blyth.

2.—(1) The pilots' representatives shall be elected by the licensed pilots as soon as may be after the passing of the Act confirming this Order and thereafter in the month of November in the year 1923 and in each third year thereafter.

(2) For the purpose of electing the pilots' representatives the secretary to the Blyth pilots in the case of the first election and thereafter the clerk to the Authority shall send out by registered letter to all the licensed pilots a circular announcing an election and enclosing a list of persons qualified under this Order to be pilots' representatives a voting card and a stamped envelope addressed to himself in which the card when filled in is to be returned within twenty-one days of the issue of the circular.

(3) Every licensed pilot shall be entitled to vote for four persons whose names are on the said list but shall not give more than one vote for any one person.

(4) At the expiration of twenty-one days from the issue of the said circular the said secretary or clerk as the case may be shall examine the voting cards returned to him and shall prepare a list in order of the four persons who have received the greatest number of votes (any uncertainty by reason of two or more persons having received an equal number of votes being decided in favour of the licensed pilot or pilots having the longest service) and such persons shall thereupon be the pilots' representatives. This list shall be posted up in the pilots' office.

(5) The first two pilots' representatives on the list referred to in the preceding subsection shall be members of the Authority but in the event of either or both of these being unable to attend any meeting of the Authority one or both as the case may be of the two other pilots' representatives may according to the order in which their names appear on the list attend take part in the proceedings and vote in his or their stead.

3. The costs charges and expenses of and preliminary and incidental to the first and subsequent elections of pilots' representatives and any expenses which the transfer of pilotage jurisdiction at Blyth may involve shall be paid by the Authority out of the Blyth Pilot Fund.

4. In the event of any vacancy among the appointed or elected members of the Authority arising otherwise than by effluxion of time the vacancy shall be filled as soon as may be thereafter in the manner prescribed for the triennial appointment or election but any person so appointed or elected shall hold office only until the next triennial appointment or election.

BUCKIE PILOTAGE ORDER.

A.D. 1922.

1. The limits of the Buckie Pilotage District (hereinafter referred to as "the Pilotage District") shall be the Harbours of Buckie (Cluny) and Buckpool and so much of the waters of the Moray Firth as lies within a radius of one mile from the western extremity of the North Breakwater at the entrance to Buckie Harbour.

Buckie.
Pilotage
District.

2. The Pilotage Authority for the Pilotage District (hereinafter referred to as "the Authority") shall be the town council of the burgh of Buckie.

Pilotage
Authority

3. Pilotage shall not be compulsory within the Pilotage District.

Pilotage
not to be
compulsory.

4.—(1) As soon as may be after the passing of the Act confirming this Order the Authority shall set up a Pilotage Committee (hereinafter referred to as "the Committee") of the Authority consisting of not more than five members of the Authority of whom one shall be nominated as chairman.

Pilotage
Committee.

(2) If at any time a majority of the pilots licensed for the Pilotage District (hereinafter referred to as "licensed pilots") desire direct representation on the Committee they shall signify the fact in writing to the Authority and the Authority shall if there are not less than and may if there are less than six licensed pilots appoint as an additional member a person who is or has been a licensed pilot who shall be elected in manner as may be agreed between the licensed pilots and the Authority or in default of agreement as may be prescribed by the Board of Trade provided that if licensed pilots are represented on the Committee and if none of the members appointed under subsection (1) of this section is a shipowner or a person interested in shipping the Authority shall appoint such a person as a further additional member.

5. The Authority may delegate to the Committee any of their powers or duties under the Pilotage Act 1913 The decisions of the Committee on questions so delegated shall not require confirmation by the Authority but the Committee shall report their proceedings to the Authority.

Powers of
Committee.

6.—(1) The chairman if present shall preside at every meeting of the Committee If the chairman is absent at any meeting such other member as the members then present choose shall preside.

Proceedings
of Com-
mittee.

(2) Every question at a meeting of the Committee shall be decided by a majority of votes of the members of the Committee present and voting on that question and in the case of equality of votes the person presiding at the meeting shall have a second or casting vote.

[Ch. xxxviii.] *Pilotage Orders* [12 & 13 GEO. 5.]
Confirmation (No. 3) Act, 1922.

A.D. 1922.

Buckie.

(3) The quorum of the Committee shall be three.

(4) No member of the Committee shall take part in any proceedings of the Committee relating to any question affecting himself personally.

(5) No act or proceeding of the Committee shall be invalid on account of any vacancy in their body or on account of the appointment or election of any member having been defective.

Period of
office.

7.—(1) Members of the Committee shall hold office for a period of three years but a member may be re-appointed or re-elected at the expiration of his term of office.

(2) In the event of any vacancy arising among the Committee otherwise than by effluxion of time it shall be filled as soon as may be thereafter in the manner prescribed in section 4 but a member so appointed or elected shall hold office only until the next triennial appointment or election.

Power to
provide or
arrange for
supply of
pilot boats.

8. The Authority may from time to time if they think fit purchase hire or build and equip maintain and work or enter into agreements or arrangements with any person for the supply use maintenance and working of such boats or vessels as in the opinion of the Authority may be required for the efficient working of the Pilotage service.

Separate
accounts to
be kept.

9. Separate accounts shall be kept by the Authority of all moneys received and expended by them in their capacity as Pilotage Authority.

Repeal.

10.—

Part 7 of the Schedule to the Buckie (Cluny) Harbour Act 1898;

Section 8 of the Buckie Burgh and Buckie (Cluny) Harbour Order Confirmation Act 1908 so far as it relates to pilotage;

Sections 34 and 35 of the Buckie Burgh and Buckie (Cluny) Harbour Order Confirmation Act 1909 and section 52 of the Buckpool Harbour Order 1893 and so much of the schedule to that Order as relates to pilotage;

and any other enactment or Order relating to pilotage in the Pilotage District shall cease to have effect and shall for the purposes of section 59 of the Pilotage Act 1913 be deemed to be superseded.

Date of
commence-
ment.

11. This Order shall come into force on the day when the Act confirming this Order is passed.

Short title.

12. This Order may be cited as the Buckie Pilotage Order 1922.

NEWCASTLE-UPON-TYNE (TRINITY HOUSE)
PILOTAGE ORDER.

A.D. 1922.

*Newcastle-
upon-Tyne.*

1. The Master Pilots and Seamen of the Trinity House of Newcastle-upon-Tyne shall be the Pilotage Authority (hereinafter referred to as "the Authority") for the following Pilotage Districts viz. Craster Holy Island and North Sunderland Seaham Warkworth and Amble and Whitby (hereinafter referred to as "the Pilotage Districts").

Pilotage
Authority.

2. The limits of the Pilotage Districts shall be respectively as follows :—

Limits of
Pilotage
Districts.

Craster—The Harbour of Craster and so much of the sea as lies within a distance of two miles from the seaward extremity of the North Pier.

Holy Island and North Sunderland—The Harbours of Holy Island and North Sunderland and so much of the sea as lies within a radius of five miles from the lighthouse on Black Rock Point off Bamburgh.

Seaham—The Harbour of Seaham and so much of the sea as lies within a distance of two miles from the seaward extremity of the North Pier.

Warkworth and Amble—So much of the River Coquet as lies below Warkworth Bridge and so much of the sea as lies within distance of two miles from the seaward extremity of the North Pier.

Whitby—The Harbour of Whitby and so much of the sea as lies within a distance of two miles from the seaward extremity of the West Pier.

3. Pilotage shall not be compulsory in any of the Pilotage Districts.

Pilotage not
to be com-
pulsory.

4.—(1) There shall be established a Pilotage Committee (hereinafter referred to as "the Committee") of the Authority consisting of members appointed and elected as follows :—

Pilotage
Committee.

(a) Four members appointed by the Authority from among their own members of whom one shall be nominated as chairman ;

(b) Two members appointed by the North of England Steamship Owners' Association or if at any time that body shall in the opinion of the Board of Trade cease to be fairly representative of the shipowners using the ports in the Pilotage Districts or any of them then by such

[Ch. xxxviii.] *Pilotage Orders* [12 & 13 GEO. 5.]
Confirmation (No. 3) Act, 1922.

A.D. 1922.

—
*Newcastle-
upon-Tyne.*

body or bodies representing shipowners as shall be nominated for the purpose by the Board of Trade ;

- (c) Two members from among the four persons (hereinafter referred to as "Pilots' representatives") elected by pilots licensed for any of the Pilotage Districts (hereinafter referred to as "licensed pilots") in manner as may be agreed between the licensed pilots and the Authority or in default of agreement as may be prescribed by the Board of Trade.

(2) The clerk to the Authority shall as soon as may be after the election prepare a list in order of the four persons who have been elected as Pilots' representatives and such list shall be posted up in the Pilots' office. The first two Pilots' representatives on the said list shall be members of the Committee but in the event of either or both of them being unable to attend any meeting of the Committee one or both as the case may be of the two other Pilots' representatives may according to the order in which their names appear on the list attend take part in the proceedings and vote in his or their stead.

(3) The costs charges and expenses of and preliminary and incidental to the election of Pilots' representatives shall be paid by the Authority out of the Pilot Fund.

Proceedings
of the Com-
mittee.

5.—(1) The chairman if present shall preside at every meeting of the Committee. If the chairman is absent from any meeting such other member as the members then present choose shall preside.

(2) Every question at a meeting of the Committee shall be decided by a majority of votes of the members of the Committee present and voting on that question and in the case of equality of votes the person presiding at the meeting shall have a second or casting vote.

(3) The quorum of the Committee shall be four.

(4) No member of the Committee shall take part in any proceedings of the Committee relating to any question affecting himself personally.

(5) Subject to the provisions of this Order the Committee may regulate their own procedure.

(6) No act or proceeding of the Committee shall be invalid on account of any vacancy in their body or on account of the appointment election or ascertainment of any member having been defective.

Warkworth
and Amble
Sub-Com-
missioners.

6. There shall be established for the Warkworth and Amble Pilotage District a Pilotage Committee of the Authority consisting of five sub-commissioners (hereinafter referred to as "the sub-commissioners") of whom two shall be nominated by the

[12 & 13 GEO. 5.] *Pilotage Orders* [Ch. xxxviii.]
Confirmation (No. 3) Act, 1922.

Authority one by the North of England Steamship Owners' Association one by the Warkworth Harbour Commissioners from among their members and one by pilots licensed for the Warkworth and Amble Pilotage District. A.D. 1922.
Newcastle-upon-Tyne.

7.—(1) The members of the Committee and the sub-commissioners shall be appointed and elected as soon as may be after the passing of the Act confirming this Order and in each third year thereafter in the same month of the year as the first appointment and election. Appoint-
 ment and
 election of
 members of
 Committee.

(2) The members of the Committee and the sub-commissioners shall hold office from the date of their appointment or election respectively until such time as their successors may be appointed or elected respectively but shall be eligible for re-appointment or re-election respectively provided that the appointment of any appointed member may be determined at any time by the body which appointed him.

8. In the event of any vacancy among the appointed or elected members of the Committee or of the sub-commissioners arising otherwise than by effluxion of time the vacancy shall be filled as soon as may be thereafter in the manner prescribed for the triennial appointment or election but any person so appointed or elected shall hold office only until the next triennial appointment or election. Casual
 vacancies.

9. The Authority may appoint committees of their body for any of the Pilotage Districts other than the Warkworth and Amble Pilotage District and they may delegate to the Committee or the sub-commissioners or any other Committee appointed by the Authority under the provisions of this section any of their powers and duties under the Pilotage Act 1913 The decisions of the respective committees on questions so delegated shall not require confirmation by the Authority but the respective committees shall report their proceedings to the Authority. Power of
 Authority to
 delegate
 powers to
 Committees.

10. The Authority shall keep separate accounts of moneys received and expended by them in connection with each of the Pilotage Districts. Separate
 accounts to
 be kept.

11. The Authority may make byelaws providing for the grant of deep-sea certificates certifying that persons to whom such certificates are granted are qualified to act as pilots of ships for any part of the sea or channels outside the District of any other Pilotage Authority constituted under the Pilotage Act 1913 provided that a pilot holding such a certificate shall not be entitled to supersede any other person as pilot of a ship. Deep sea
 certificates.

12. The Authority may acquire own hire build renew maintain and work vessels for the purposes of this Order and may at their discretion alter sell or exchange any such vessels. Power to
 acquire
 vessels &c.

[Ch. xxxviii.] *Pilotage Orders* [12 & 13 GEO. 5.]
Confirmation (No. 3) Act, 1922.

A.D. 1922.

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*Newcastle-
upon-Tyne.*
Repeal.

13. The Act 41 George III. c. 86 and any other enactment order or charter so far as they relate to pilotage in the respective Pilotage Districts shall cease to have effect and shall for the purposes of section 59 of the Pilotage Act 1913 be deemed to be superseded.

Date of
commence-
ment.

14. This Order shall come into force one month after the day when the Act confirming this Order is passed.

Short title.

15. This Order may be cited as the Newcastle-upon-Tyne (Trinity House) Pilotage Order 1922.

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